

Historical Farming, Agricultural Use and Land-Clearing Evidence Summary

Property: 6 Bulwer Road, Moss Vale NSW 2577 · Lot 4 DP746930 · Parish of Bong Bong, County of Camden
Report date: 1 May 2026

Executive Summary

The land at 6 Bulwer Road, Moss Vale (Lot 4 DP746930) sits within the historical **Austermere Estate**, a substantial holding that was repeatedly surveyed and marketed for farming, dairying, grazing, market gardens, orchard blocks and agricultural farms across at least **eight subdivision plans dated 1881 to 1919**. The 1891 subdivision plan explicitly names **Bulwer Road** as one of its boundary roads, and records survey coordinates that align directly with the modern geocode of 6 Bulwer Road. The estate was owned by **Sir John Lackey, KCMG (1830-1903)**, who was concurrently **President of the Bong Bong Picnic Race Club from 1893 to 1903**, placing the parcel within the documented horse-keeping and horse-racing history of the Bong Bong / Moss Vale district. The Wingecarribee Shire Heritage Study additionally records **‘Lackey Park’** at the corner of Lackey Road and Lytton Road — immediately adjacent to the Bulwer Road parcels — as a **‘Victorian public garden and racetrack’** proclaimed in 1893 and named for the same Sir John Lackey, supporting the interpretation of the smooth elliptical ground feature visible on Lot 4 in the NSW Spatial Services historical aerial imagery (1963-1991) as an **ancillary private horse exercise / training track** within that established racing precinct.

No natural watercourse is recorded crossing Lot 4 on the 1891 subdivision plan, the 1942 or 1968 parish maps, or the modern NSW Cadastre — meaning any linear water-channel feature visible on the parcel is most consistent with a **man-made agricultural drain or irrigation feature** installed during the parcel’s farming use. Three named original surveyors of record — **William Harper (c. 1822)**, **Major Mitchell (1830s)** and **Henry C. Fowler (1881-1891)** — produced the authoritative original surveys of the parcel across 70 years of colonial survey practice; **none recorded a natural watercourse on Lot 4**. The Wingecarribee LEP 2010 Natural Resources Sensitivity (Cat 3) line on Lot 4, if any, is a **retrospective GIS overlay first dated 23 January 2012**, derived from a hydro dataset that openly ‘represents a stream network of features both natural and artificial’.

Applying the four-test framework drawn from the Water Management Act 2000 (NSW), the DCCEEW Riparian Corridors Guidelines, the Wingecarribee Local Environmental Plan 2010 and the High Court’s watercourse test in *Gartner v Kidman* (1962) 108 CLR 12 (applying *Lyons v Winter* (1899) 25 VLR 464), the position that the feature is a natural watercourse attracting riparian-corridor protection is not made out. On the balance of the historical, regulatory and case-law evidence, the property is correctly characterised as **cleared agricultural land within a long-established and heritage-documented horse-racing locality, with designed water management consistent with the documented Bong Bong / Moss Vale farming tradition — not a natural-watercourse / riparian-corridor parcel under NSW law**.

1. Property Identification

Item	Detail	Source
Street address	6 Bulwer Road, Moss Vale NSW 2577	Contract for sale, page 1
Title reference	Lot 4 in Deposited Plan 746930 (Folio 4/746930), Part Folio Identifier 4/746930	NSW LRS title search, contract page 43
Parish / County	Parish of Bong Bong, County of Camden	NSW LRS title search
Parent title	DP746930 was registered 1 June 1987 as a subdivision of Lot 2 DP580513 (council approval N1347/87 dated 6 April 1987; Torrens title; reference map W3770-2)	DP746930 title block, contract page 44
Area	8.696 hectares — as recorded on DP746930 plan annotation for Lot 4	DP746930 surveyed plan
Old System parent title	First Title: OLD SYSTEM ; Prior Title: Vol 12956 Folio 250 . Modern Folio 4/746930 was first issued on registration of DP746930 in 1987 (Edition 1).	NSW LRS Historical Search Folio 4/746930, search dated 1 May 2026
Current zoning	E4 General Industrial — agriculture and farm buildings prohibited	2023 planning certificate
Current zoning note Current zoning is not evidence of historical use. The land was identified as agricultural / rural across the documentary record reviewed below, well before E4 General Industrial zoning was applied.		

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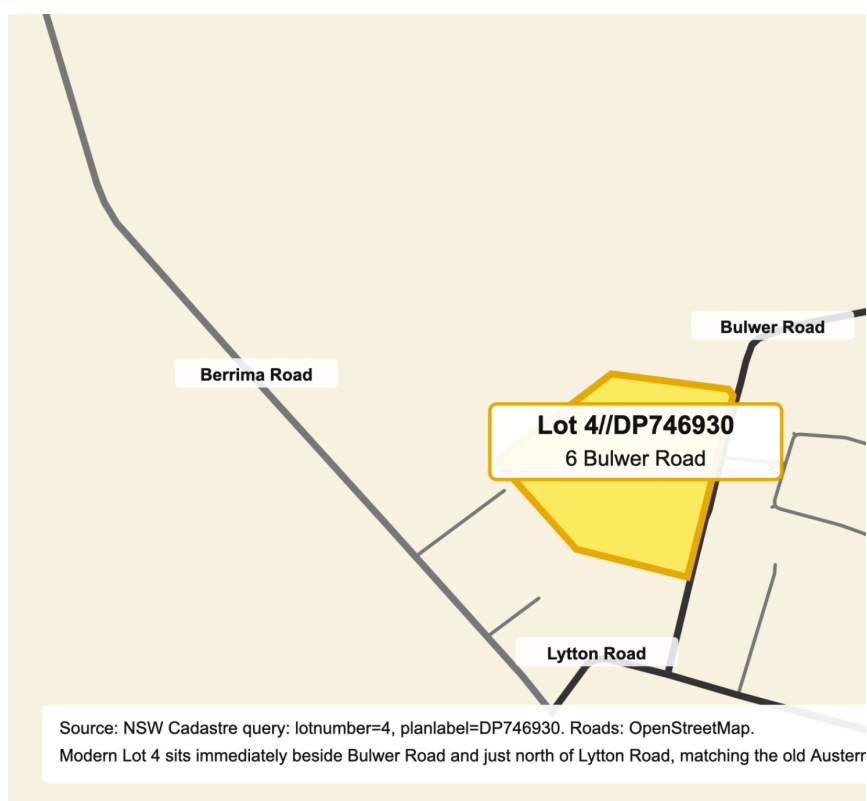


Figure 1: visual prepared from NSW Cadastre Feature Layer geometry and OpenStreetMap road geometry for orientation.

NSW Cadastre query (lotnumber=4, planlabel=DP746930) places Lot 4 immediately beside Bulwer Road and just north of Lytton Road. Roads from OpenStreetMap.

2. Modern Title Chain — From 6 Bulwer Road Back to the Austermere Estate

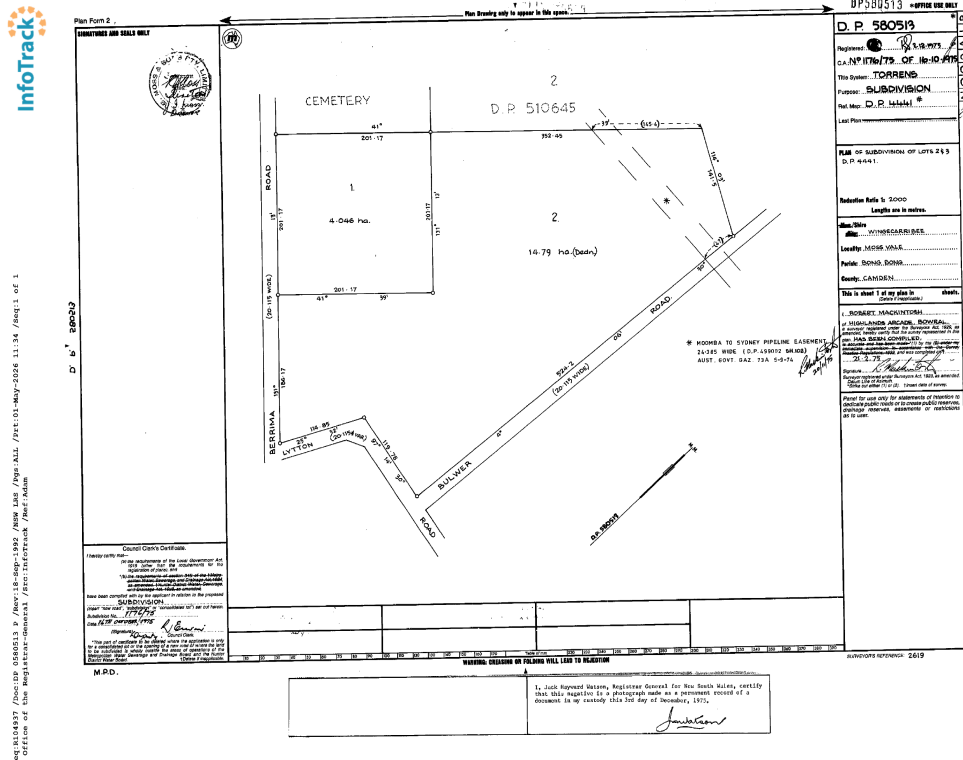
A reverse-direction title-chain analysis from the modern Lot 4 DP746930 through the registered deposited plans and the historical title search confirms that the parcel sits within the Parish of Bong Bong, County of Camden — the same parish and county as the Austermere Estate — and that its modern boundary fronts Bulwer Road, consistent with the 1891 Henry C. Fowler subdivision plan boundaries. The chain ultimately resolves to an Old System parent title, predating the Torrens system and the modern subdivision lineage.

Step	Plan / instrument	Date	Detail
1	Lot 4 in DP746930 (modern title)	Registered 1 June 1987	6 Bulwer Road, Moss Vale. Folio Identifier 4/746930, Torrens. Area: 8.696 ha . Bordered by Bulwer Road on east; bordered by Lytton Road on south. Council Approval N1347/87 dated 6 April 1987. Surveyor: John Bowden , 83 George St, Parramatta. Locality: Moss Vale; Parish: Bong Bong; County: Camden.
2	Lot 2 in DP580513 (parent title)	Registered 2 December 1975	Lot 2 of DP580513 = 14.79 ha (Dedn). Parent title from which the 1987 DP746930 subdivision was carved. Council Approval N° 1176/75 dated 16 October 1975. Surveyor: Robert Mackintosh , Highlands Arcade, Bowral; survey completed 21 February 1975. Locality: Moss Vale; Parish: Bong Bong; County: Camden. Plan body shows Bulwer Road, Lytton Road, Berrima Road and Cemetery (DP510645) as adjoining features.
3	Lots 2 & 3 in DP4441 (grandparent title)	Pre-1975 (early 20th century)	DP4441 was the earlier subdivision plan from which Lots 2 and 3 were carved into DP580513 in 1975. The low DP number is consistent with a NSW LRS deposited plan registered in the early 1900s — on or about the period of the Austermere Estate 1904 / 1908 / 1919 sales. Locality, parish and county consistent.
4	Old System parent Vol 12956 Folio 250	Pre-Torrens conversion title	Historical Title Search (NSW LRS, search dated 1 May 2026) records the First Title for the modern parcel as OLD SYSTEM , prior title Vol 12956 Folio 250 . Old System titles trace land description back to the original Crown grant deeds, predating the Torrens registration system. Folio 4/746930 was first issued on registration of DP746930 in 1987 (Edition 1).
5	Austermere Estate, Moss Vale & Bong Bong	1881-1919 subdivision series	Bulwer Road is expressly named as a boundary road on Henry C. Fowler's 1891 Austermere subdivision plan (NLA catalogue 4347319) and on the 1919 plan (SLNSW Z/TP/M5/80). The 1891 plan's recorded coordinates E 150°22' / S 34°32' match the modern geocode of 6 Bulwer Road (~34.533°S, 150.367°E) directly. The Bulwer Road frontage of modern Lot 4, the 1975 DP580513 plan and the 1987 DP746930 plan all sit on the same Bulwer Road shown on the 1891 Austermere plan.

Sources: NSW LRS Deposited Plan DP746930 (registered 1 June 1987); NSW LRS Deposited Plan DP580513 (registered 2 December 1975); NSW LRS Historical Search Folio 4/746930 (searched 1 May 2026); National Library of Australia catalogue 4347319 (Austermere Estate 1891 plan); State Library of NSW Z/TP/M5/80 (Austermere Estate 1919 plan).

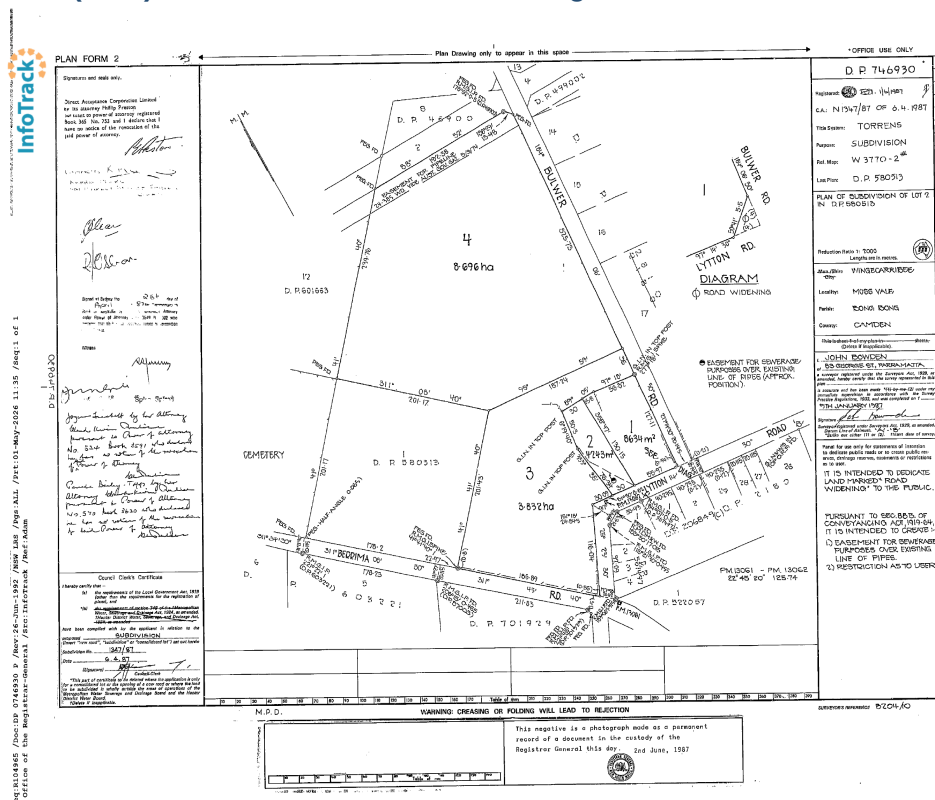
What the title chain confirms. Modern Lot 4 DP746930 is conclusively traceable, by registered deposited-plan succession, back to a parent (Lot 2 DP580513, 1975), a grandparent (Lots 2 & 3 DP4441, early 20th century), and ultimately to an **Old System title** (Vol 12956 Folio 250) that predates the modern Torrens lineage. The locality, parish and county are consistent across every link of the chain (Moss Vale / Bong Bong / Camden) and align with the Austermere Estate's 1881-1919 subdivision series. The fundamental boundary feature of the parcel — **Bulwer Road** — appears as a named boundary on Henry C. Fowler's 1891 Austermere subdivision plan with surveyed coordinates that match the modern geocode of 6 Bulwer Road. Together the modern title chain and the original 1891 survey establish that the parcel **has always been part of the historic Austermere Estate footprint**, from the time of original survey to the current day.

2.1 DP580513 (1975) — Parent Plan Creating Lot 2 (Subsequently Subdivided as DP746930)



Deposited Plan 580513. Registered 2 December 1975 by surveyor Robert Mackintosh, Highlands Arcade, Bowral. Plan of Subdivision of Lots 2 & 3 of DP4441. Lot 2 (14.79 ha) was the parent parcel that DP746930 (1987) subdivided to create modern Lot 4 / 6 Bulwer Road. The plan body shows Bulwer Road, Lytton Road, Berrima Road and the adjoining Cemetery parcel (DP510645). Locality / Parish / County: Moss Vale / Bong Bong / Camden — consistent with the Austermer Estate. Source: NSW LRS.

2.2 DP746930 (1987) — Modern Subdivision Creating Lot 4 / 6 Bulwer Road



Deposited Plan 746930. Registered 1 June 1987 by surveyor John Bowden. Plan of Subdivision of Lot 2 in DP580513. Lot 4 (8.696 ha) is bordered on the east by **Bulwer Road** and on the south by Lytton Road (with road widening shown). An easement for the Sydney pipeline (gazetted 5 September 1974) crosses the northern portion of Lot 4. Source: NSW LRS.

3. The Austermere Estate — The Historical Landholding That Contained Bulwer Road

6 Bulwer Road sits within the footprint of the **Austermere Estate**, a Moss Vale and Bong Bong landholding that was surveyed and offered for sale through a sequence of subdivision plans across nearly four decades. The State Library of NSW catalogues at least eight Austermere subdivision plans between 1881 and 1919, and a corresponding 1904 plan is held by the National Library of Australia. Several of those plans expressly list **Bulwer Road** as a boundary road, and the marketing language used across the series consistently describes the land as cleared and suitable for farming, dairying, grazing, market gardens, orchard blocks, and dairy and agricultural farms.

Year	Plan reference	Description / marketing language
1881	SLNSW Z/TP/M5/47	Austermere Estate, Moss Vale — earliest dated entry in the catalogued series.
1882	SLNSW Z/TP/M5/31	Austermere Estate, Moss Vale. Marketing: 'Undulating Land, Good Soil, Suitable for Farming, Dairying, Grazing, Market Gardens' .
1882	SLNSW Z/TP/M5/86	Austermere Estate, Moss Vale & Bong Bong.
1884	SLNSW Z/TP/M5/11	Austermere Estate, Moss Vale & Bong Bong — subdivision of 600 acres.
1891	SLNSW Z/TP/M5/18 / NLA 4347319	Austermere Estate, 600-acre subdivision; auction 21 March 1891. Boundaries listed as Collins, Lackey, Beaconsfield, Bulwer, Braddon and Lever Roads . Surveyor: Henry C. Fowler, Bowral. Coordinates: E 150°22' / S 34°32' .
1892	SLNSW Z/TP/M5/24	Austermere Estate, Moss Vale. Same farming/dairying/grazing/market-garden marketing language.
1904	NLA nla.obj-230332818 / 4347278	Moss Vale, Austermere Estate — 'Property of the late Sir John Lackey, 4,000 acres' . Marketing: 'Undulating land, good soil, well watered, large area cleared & ready for plough, residential sites, orchard blocks, dairy and agricultural farms' . Auction 26 November 1904.
1908	SLNSW Z/TP/M5/53, 71	Moss Vale — later Austermere-related sales, noting proximity to Moss Vale Railway Station and Bong Bong Railway Platform on the estate.
1919	SLNSW Z/TP/M5/80	Austermere Estate, Moss Vale & Bong Bong — later residual sale.

Sources: *State Library of NSW Moss Vale subdivision-plans tabular list* (www2.sl.nsw.gov.au/content_lists/town_plans/moss_vale.html); *National Library of Australia catalogue records 4347319 (1891 plan) and 4347278 (1904 plan)*.

Why the 1881-1892 Plans Matter

The 1891 plan's explicit naming of Bulwer Road as a boundary, together with its recorded coordinates of E 150°22' / S 34°32' (which match the modern geocode of 6 Bulwer Road at approximately 34.533°S, 150.367°E), places Lot 4 DP746930 within the surveyed Austermere Estate locality. The 1882 and 1892 plans both carry the explicit marketing description 'Undulating Land, Good Soil, Suitable for Farming, Dairying, Grazing, Market Gardens' for the same estate. The earliest documented agricultural-suitability description for the locality is therefore **1882** — twenty-two years earlier than the 1904 plan that has commonly been cited.

Scale of the Wider Austermere Estate — 600 Acres in 1891 → 4,000 Acres in 1904

The 1891 Fowler plan was an auction sheet for a **600-acre subdivision parcel** of the Austermere holdings — not the entire estate. By the 1904 sale (Saturday 26 November 1904, Richardson & Wrench Ltd, NLA nla.obj-230332818) the catalogued estate is described as **'Property of the late Sir John Lackey, 4,000 acres'** — i.e. the wider Austermere holdings at the time of Lackey's death covered approximately **6.7× the area** of the 1891 sale parcel. The 1908 sale (SLNSW Z/TP/M5/71) marketed further residual parts of the Lackey estate on Torrens Title with the same 'Undulating Land, Good Soil, suitable for Farming, Dairying, Grazing, Market Gardens' marketing language. The relevant scope for the parcel-locality question is therefore **the 4,000-acre 1904 Lackey / Austermere estate**, not just the 600-acre 1891 subdivision sheet. Lot 4 DP746930 sits within this wider Austermere estate locality, as confirmed by the modern title chain (Section 2), the 1904 plan's marketing scope, and the 1908 plan's explicit recording of watercourses on the neighbouring 'Mr Clough' parcel but not on any part of the Austermere estate itself.

MOSS VALE AUSTERMERE ESTATE

Well known as the Property of the late Sir John Lackey 4000 ACRES

Within 25 Chains of
MOSSVALE RAILWAY STN.

5 Miles of River frontage

Frontages to Railway Line also to **BOWRAL & BERRIMA** Main Roads

Undulating Land, Good Soil,
well watered, large area cleared &
ready for plough. Residential Sites
Orchard Blocks, Dairy & Agricultural Farms.

Bong Bong Railway Plat^{fm} on the Estate

SALE SATURDAY at 2.00.

ON THE ESTATE 26th NOVEMBER 1904

"TORRENS" TITLE

TERMS
10 per cent Deposit,
5 per cent in 6 Months,
Balance by ten 1/2 yearly payments,
with 5 per cent interest.
with right to pay off at any time.

REASONABLE PRICES

RICHARDSON & WRENCH LTD.
Auctioneers 98 Pitt St. Sydney

with **ANDREW D. BADGERY**
Auctioneer Moss Vale

DIAGRAM

ATCHISON & SCHLEICHER
Licensed Surveyors
Specialty extended Water & P & Mining Acts
Edwin Chambers 92 Pitt Street Sydney

William Brown & Co. Ld. LK. SYDNEY.

TOWN OF MOSS VALE

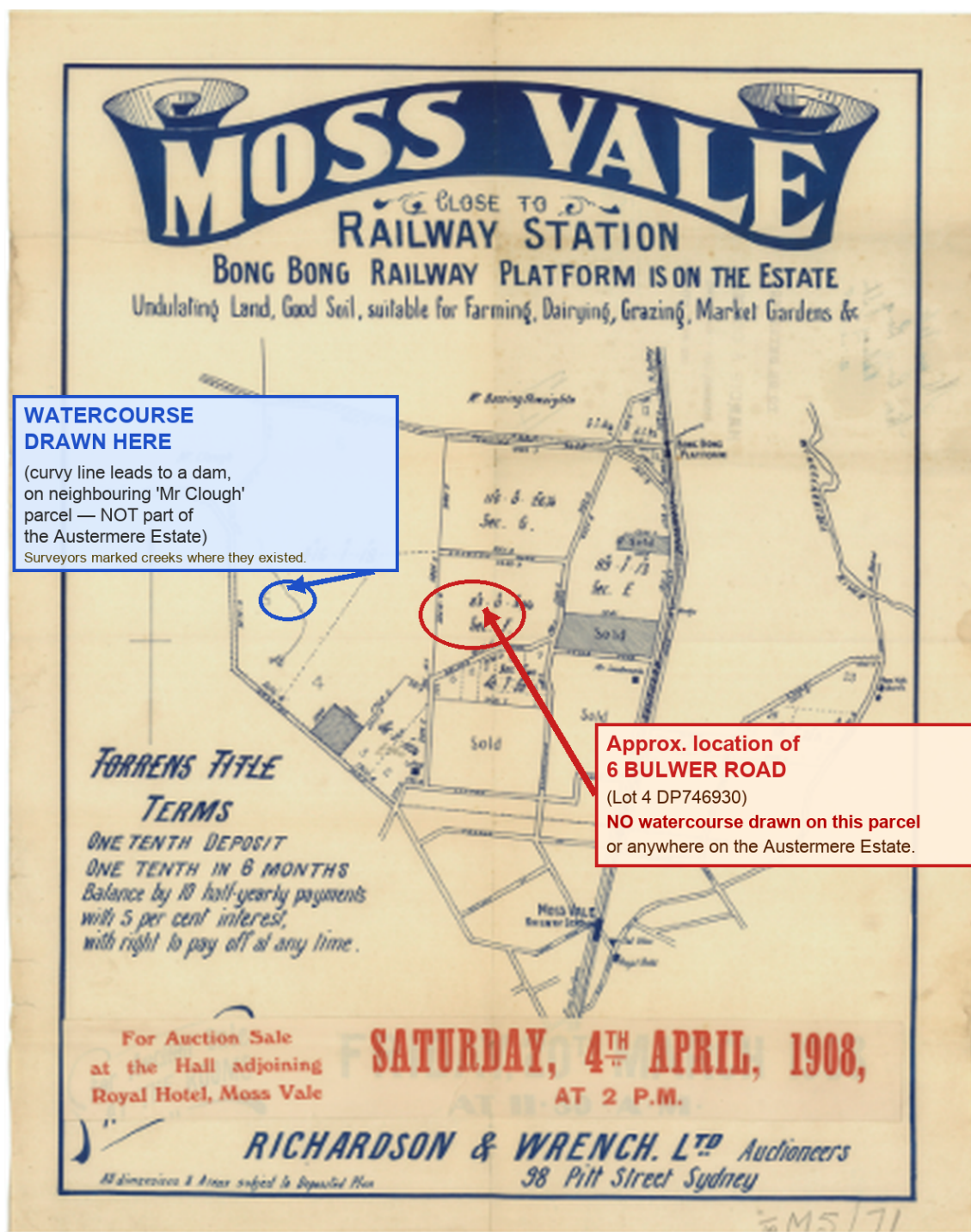
All measurements & Areas subject to Dep. Plans

VENDORS
THE INTERCOLONIAL INVESTMENT LAND & BUILDING COMPANY LTD
14 Moore St SYDNEY. G. P. D.
W. J. Douglas, Manager

1904 Austermere Estate sale plan, National Library of Australia (nla.obj-230332818). Vendor: The Intercolonial Investment Land & Building Company Ltd, on the estate of the late Sir John Lackey. Heading text reads: 'Undulating land, good soil, well watered, large area cleared & ready for plough, residential sites, orchard blocks, dairy & agricultural farms'.

1908 Austermere Estate Sale Plan — Direct Visual Evidence: No Watercourse on Lot 4

The 1908 Austermere Estate sale plan (Saturday 4 April 1908, auctioneers Richardson & Wrench Ltd of 98 Pitt Street Sydney; State Library of NSW Z/TP/M5/71) is particularly important because it directly demonstrates the surveying convention of the period: **natural watercourses were drawn on subdivision plans where they existed**. The plan shows a wavy creek line drawn through the neighbouring 'Mr Clough' parcel on the western side of the plan — that parcel is **not** part of the Austermere Estate. By contrast, **no watercourse line is drawn on any part of the Austermere Estate itself**, including the area corresponding to modern Lot 4 / 6 Bulwer Road. The contrast is direct documentary evidence that surveyors of 1908 era surveyed the parcel and recorded no natural creek on it — because none existed.



1908 Austermere Estate sale plan (State Library of NSW Z/TP/M5/71). Annotations added for this report: **blue arrow** — watercourse drawn through the neighbouring 'Mr Clough' parcel (NOT part of the Austermere Estate); **red arrow** — approximate location of 6 Bulwer Road / Lot 4 DP746930 within the Austermere Estate, with no watercourse drawn on or near the parcel. Plan marketed the estate as 'Undulating Land, Good Soil, suitable for Farming, Dairying, Grazing, Market Gardens &c' on Torrens Title.

4. Owner History — Sir John Lackey and the Bong Bong Picnic Race Club

The 1904 Austermere Estate plan describes the property as 'Property of the **late** Sir John Lackey', identifying the named historical owner. Independent biographical sources (Sydney Morning Herald obituary, 12 November 1903; Australian Royalty genealogical record; Southern Highland News club history) confirm:

- **Sir John Lackey, KCMG** (b. 13 October 1830, Parramatta — d. 11 November 1903 at his residence Austermere, Moss Vale). Late President of the NSW Legislative Council.
- Founding figure of the Bong Bong Picnic Race Club: present at the inaugural meeting in Moss Vale on **3 May 1886**.
- **President of the Bong Bong Picnic Race Club from 1893 to 1903** — ten consecutive years covering the period across which the Austermere Estate was actively being subdivided and marketed.
- **Lackey Road**, named after Sir John Lackey, sits alongside Bulwer Road as one of the boundary roads of the 1891 Austermere subdivision — placing the Lackey estate and the Bulwer Road parcels in direct historical adjacency.

What this establishes. The most senior local horse-racing authority of the period (1893-1903) personally owned and resided on the Austermere Estate that contained the Bulwer Road and Lytton Road parcels. This does not by itself prove a track existed on Lot 4, but it explains why the surrounding land continued to be held as cleared, horse-suitable paddock through the late 19th and early 20th centuries, and it places the immediate locality within the documented organisational orbit of the most prominent local horse-racing institution.

5. Wider-District Horse Context — Throsby and Moss Vale

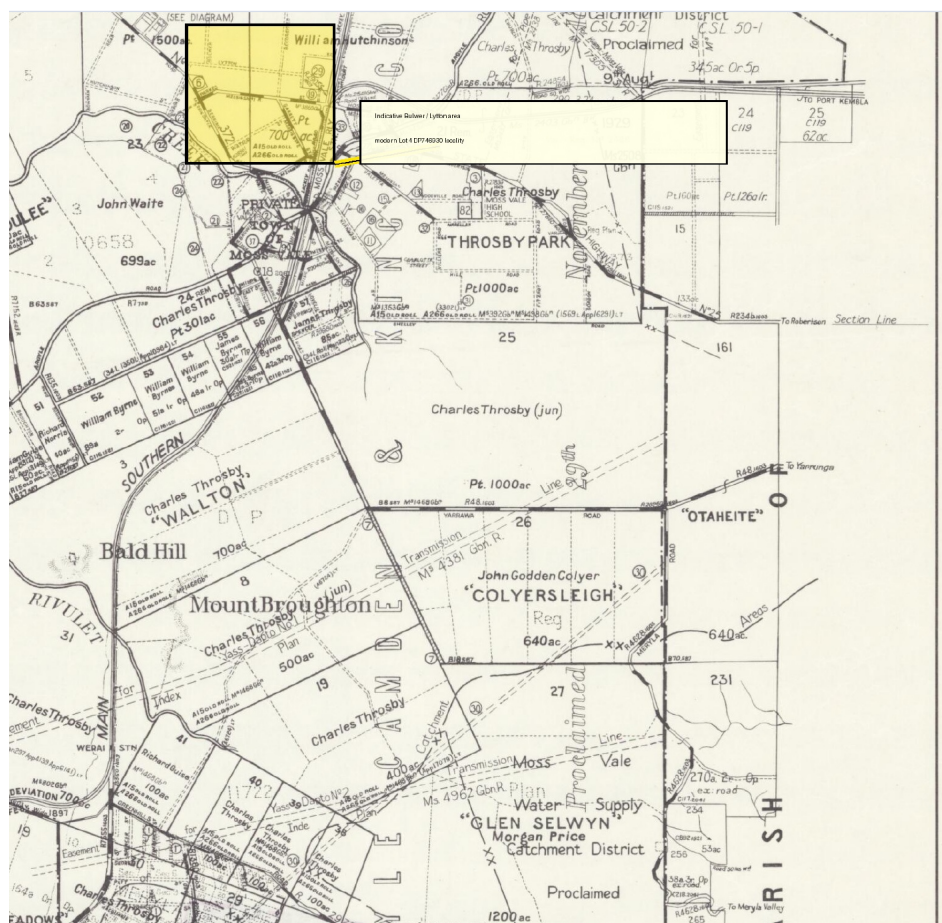
The original 1819 grant to Dr Charles Throsby of 1,000 acres at Bong Bong is the surviving core of the colonial pastoral landscape in which 6 Bulwer Road sits. The wider Moss Vale / Bong Bong district has a continuous documented horse-keeping, breeding, racing and training history that frames the property:

Year	Event / record
1819	Dr Charles Throsby is granted 1,000 acres at Bong Bong; the modern Moss Vale township stands on Throsby Park land.
1886	Bong Bong Picnic Race Club founded; first meeting held on the Throsby Estate. Pat Throsby offered a choice of two sites on his land for the racecourse.
Late 19th c.	Frank Throsby documented as a successful horse breeder, particularly of sulky horses (harness/trotting type). Throsby Park is described in heritage records as 'a mecca for all those interested in horsemanship'.
1900	Moss Vale Jockey Club formed; race meetings held on the Bong Bong track on the Throsby Estate.
1901	Bong Bong races moved to a site near the Briars Inn.
1910	New Bong Bong venue established at Burradoo.
1959	Bong Bong Picnic Race Club re-formed; meetings held at the Wyeera property, Bowral-Kangaloon Road.
1965	Moss Vale Trotting Club founded — coincides with the period when the oval feature on Lot 4 is most sharply defined on aerial imagery.
1980s	Bong Bong Picnic Races become the largest picnic-race meeting in the world; ~35,000 attendees in 1985.

Sources: *Throsby Park* — Museums of History NSW; *Southern Highland News*, 'The several existences of the Bong Bong Picnic Race Club'; Sydney Morning Herald obituary of Sir John Lackey, 12 November 1903 (Trove); 'Vale Alan Chittick' (*Southern Highland News / South Coast Register*) for Moss Vale Trotting Club founding.

6. Parish-Map Evidence — Rural Cadastral Landscape

The 1942 (8th edition) and 1968 (9th edition) Department of Lands Parish of Bong Bong maps continue to depict the Moss Vale township and surrounding parcels as a rural cadastral landscape made up of large named holdings, including holdings associated with Hutchinson, John Waite and Charles Throsby. The Bulwer / Lytton Road locality sits inside that rural-parish pattern, beside the older Moss Vale township and adjacent to large-acreage parish land. The maps do not themselves carry phrases such as ‘cleared for agriculture’, but the landholding pattern is fully consistent with the contemporaneous Austermere marketing material.



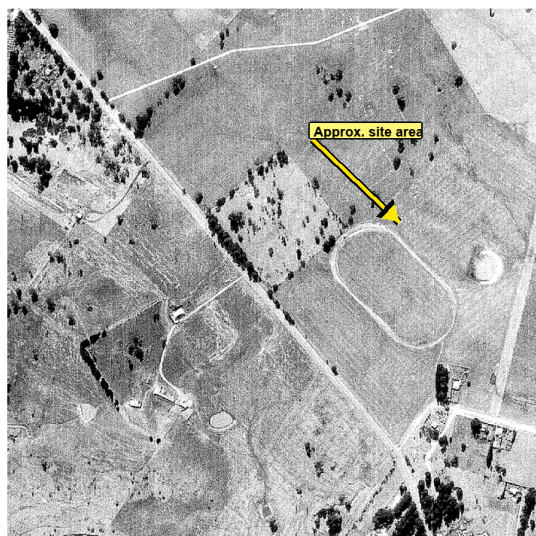
Indicative Bulwer/Lytton locality position on the 1968 Parish of Bong Bong (County of Camden) map, used for orientation only against the modern Lot 4 DP746930 location. Source: NSW Department of Lands historical parish-map series.

7. Historical Aerial Imagery (1963 - 1997)

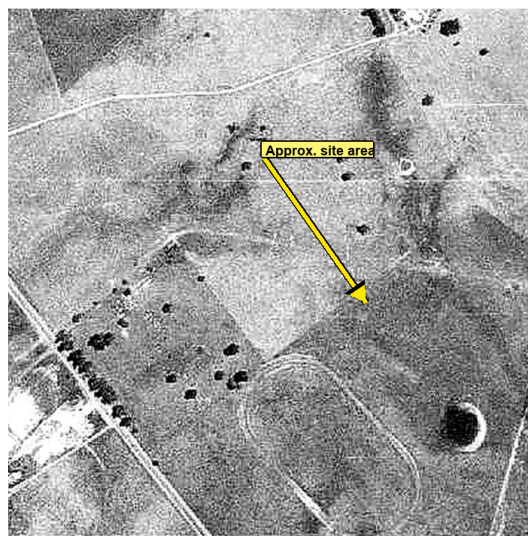
NSW Spatial Services historical aerial imagery for the parcel and immediate surrounds was reviewed across six dates: 19 August 1963, 8 January 1979, 25 February 1989, 23 September 1991, 24 September 1991 and 21 January 1997. Yellow arrows in each frame indicate the approximate site / oval area only and are not surveyed annotations. Across all six frames the parcel and its immediate surrounds present as cleared paddock with access tracks; from 1963 onward a distinct elliptical ground feature is visible on or immediately beside Lot 4 DP746930.

1963 and 1979 — Black-and-White Frames

Zoomed-in view: 19/08/1963 - 6 Bulwer Road / Lot 4



Zoomed-in view: 08/01/1979 - 6 Bulwer Road / Lot 4



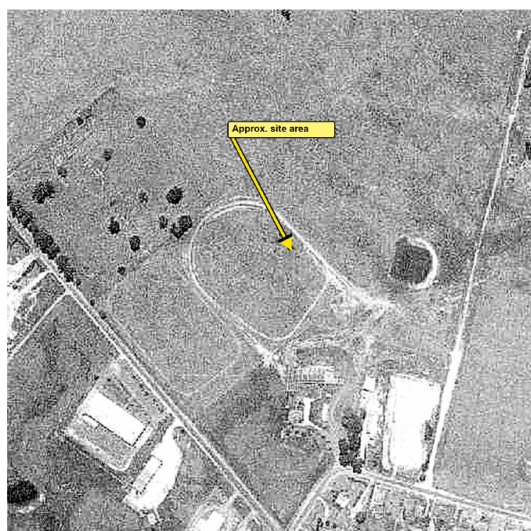
Left: 19 August 1963. Right: 8 January 1979. The 1963 frame shows the sharpest, most compacted edge to the elliptical feature, consistent with active use during that period. The 1979 frame shows the same feature persisting in a maturing, lightly vegetated cleared paddock context.

1989 and September 1991 — Transition to Colour Imagery

Source: NSW Spatial Services - Historical Imagery Viewer / Historical Aerial Photography collection.

Zoomed-in view: 25/02/1989 - 6 Bulwer Road / Lot 4

Zoomed-in view: 23/09/1991 - 6 Bulwer Road / Lot 4

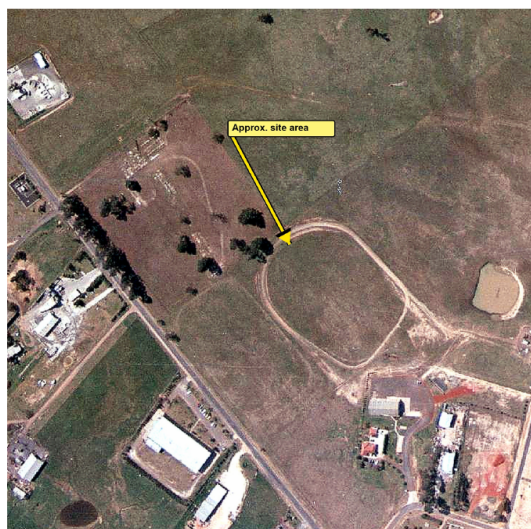


Zoomed-in view: 24/09/1991 - 6 Bulwer Road / Lot 4

Zoomed-in view: 21/01/1997 - 6 Bulwer Road / Lot 4

Left: 25 February 1989. Right: 23 September 1991. The elliptical feature remains clearly outlined in 1989. By the September 1991 colour frame the perimeter rail / fence line is distinct, and a smaller circular feature is visible to its right — the size and proximity of which are consistent with a round yard / lunging yard ancillary to a horse-exercise area.

September 1991 and January 1997 — Encroachment of Subdivision



Left: 24 September 1991. Right: 21 January 1997. The elliptical feature remains visible in late 1991. By 1997 the surrounding subdivision has substantially encroached and the oval feature is fading on aerial imagery. The 8 January 1974 frame in the NSW Spatial Services collection has been excluded as poor-quality and adds no incremental information.

8. Analysis — Is the Oval Feature a Horse Track?

The elliptical ground feature visible on Lot 4 from 1963 to 1991 has been examined against three test questions to assess whether the geometry and history are consistent with a private horse exercise / training track.

8.1 Shape and Proportion

The feature is a smooth ellipse. There are no observable rounded-rectangle corners (soccer / Australian-rules / rugby field), no straight 100-metre sides (athletics oval), and no diamond infield (baseball / softball). The long-axis to short-axis ratio is approximately **1.5 : 1**, which is the typical proportion of a private horse exercise or sulky training track. Sports ovals are typically closer to 1.2 : 1.

8.2 Size

Visual scaling against the adjacent road network and the modern NSW cadastre (Lot 4 $\approx$ 8.6 ha) places the long axis of the oval at approximately **80–110 metres** and the short axis at approximately **50–70 metres**, giving a perimeter on the order of **250–300 metres**. This size range is too small for a registered thoroughbred racecourse (typical perimeter 1,600–1,800 m), too small for a regulation Australian sports oval (typical long axis 130–185 m), but a strong match for a **private horse exercise, lunging or sulky training track** on a single rural-residential parcel.

8.3 Period of Clearest Definition

The 1963 frame shows the sharpest, most compacted-looking perimeter (active-use signature). By 1989-1991 the perimeter remains clearly defined but the centre has greened up (consistent with reduced-frequency use and a grass-centre exercise track). By 1997 the feature is fading as residential subdivision encroaches. The 1965 founding of the Moss Vale Trotting Club coincides with the sharpest aerial-definition phase — relevant context, though not direct proof of association.

8.4 Lackey Park — Documented Historical Racetrack at the Corner of Lackey Road and Lytton Road, Immediately Adjacent to the Bulwer Road Parcels

The Wingecarribee Shire Heritage Study (Architectural Projects Pty Limited, 2008-2009; drawing on the JRC Planning Services Heritage Study for Wingecarribee Shire Council, 1993) documents a heritage item at the corner of Lackey Road and Lytton Road, Moss Vale — Heritage Item EG17, identifier 2680249, named **‘Lackey Park’**. The Heritage Study characterises the item as follows:

- **‘The park has significance as a Victorian public garden and racetrack.’** (Heritage Study, Volume 3 Significance, item 29.104.)
- **‘Lackey Park was proclaimed in 1893.’** (Heritage Study, Vol. 3, item 29.104, drawing on JRC Planning Services 1993.)
- Current physical features recorded on site: **‘Circular track, post and rail fence, mixed species of mature trees to boundary, cricket nets and play equipment.’**
- Significant plantings: **‘A pair of mature pines that may be original plantings from the parks reservation in 1893, a line of Populus Nigra which border the northern boundary, and a large Quercus Robur in the South.’**

The proclamation of Lackey Park in 1893 occurred in the same year Sir John Lackey assumed the presidency of the Bong Bong Picnic Race Club (1893-1903), and falls inside the active subdivision period of his Austermere Estate (Henry C. Fowler's 1891 plan and the 1892 plan). The Park is named after Lackey himself. Its proclaimed location at the corner of Lackey Road and Lytton Road is the immediate adjoining locality to the Bulwer Road parcels (Lot 4 sits beside Bulwer Road and just north of Lytton Road).

Significance for the oval feature on Lot 4. The aerial oval feature on Lot 4 (~80-110 m long axis) is materially smaller than a public-racetrack circuit and is consistent with a private exercise / training oval. The Heritage Study's formal characterisation of the immediately adjacent Lackey Park as a **‘Victorian public garden and racetrack’**, proclaimed in 1893 and named for the same Sir John Lackey who owned the Austermere Estate, is direct documentary evidence that the Bulwer / Lytton / Lackey Road locality functioned as a recognised horse-racing precinct from at least 1893. On that record, an oval feature on a privately held parcel of the same precinct is best understood as an **ancillary private exercise / training track** within the wider Lackey-Park-era horse-racing landscape — not as a sports oval or unrelated ground feature.

Working interpretation. On size, proportion, isolation from any sporting complex, and the documented horse-breeding / training / racing context of the surrounding district, the oval feature is materially more consistent with a **private horse exercise or sulky training track** than with any sports-oval use. No document directly captioning the oval as a horse track has been located in the present review; the interpretation is evidence-weighted, not directly evidenced. A formal historical land-use assessment, a Wingecarribee Shire Council development-application history check for Lot 4 / Lot 2 DP580513 (1960-1990), and inquiries to the Berrima District Historical & Family History Society and the Moss Vale Trotting Club / Bong Bong Picnic Race Club archives would be the next steps if a documentary caption is required.

9. Analysis — Watercourse Features on Lot 4 Are Man-Made, Not Natural

Linear ground features visible on the historical aerial imagery of Lot 4 raise the question of whether any creek, drain or channel on the parcel is a pre-existing natural watercourse or a designed agricultural watercourse installed during the parcel's farming history. A baseline check across the surveyed and cadastral record establishes that **no natural watercourse is mapped crossing Lot 4**:

Source	What it shows for Lot 4
NSW Cadastre Feature Layer (current)	No watercourse polygon or labelled creek runs through Lot 4 DP746930. The parcel sits beside Bulwer Road and just north of Lytton Road on cleared land.
1891 Austermere subdivision plan (Henry C. Fowler, Bowral)	Surveyors of that era marked every natural creek line on subdivision plans. The 1891 Austermere plan records the boundary roads (Collins, Lackey, Beaconsfield, Bulwer, Braddon, Lever) and the lot subdivision — no first-order natural creek is recorded crossing the Bulwer Road parcels.
1908 Austermere Estate sale plan (Richardson & Wrench Ltd; SLNSW Z/TP/M5/71)	Direct visual evidence: the 1908 plan draws a wavy creek line through the neighbouring 'Mr Clough' parcel on the western side of the plan, but draws no watercourse on any part of the Austermere Estate itself . Confirms surveyors of the 1908 era observed and recorded creeks where they existed; absence on the Austermere parcels is therefore evidence of non-existence, not of survey omission.
1942 (8th edition) and 1968 (9th edition) Parish of Bong Bong maps	Show the Wingecarribee River and Whites Creek as the named natural watercourses for the parish. No natural watercourse is shown crossing the Bulwer / Lytton Road locality.
Whites Creek (principal Moss Vale tributary of the Wingecarribee River)	Headwaters above Moss Vale Golf Course; runs through the centre of the Moss Vale township. Does not pass through the Bulwer Road / Lytton Road locality.
Wingecarribee River frontage	The Austermere 1904 plan markets the wider 4,000-acre estate as having '5 miles of river frontage' to the Wingecarribee River. That frontage is to the north-east of the Bulwer / Lytton Road parcels — Lot 4 itself has no river boundary.

9.1 Why This Matters

If no natural creek was recorded crossing the parcel at survey (1891), and the same parcel remains free of any mapped natural watercourse on the 1942 and 1968 parish maps and the modern NSW Cadastre, then by elimination any linear water-channel feature visible on the historical aerial imagery of Lot 4 is **not a mapped natural creek**. The most consistent explanation is a man-made drain, soak cut or irrigation furrow installed during the parcel's long farming use.

9.2 Why a Man-Made / Designed Watercourse Fits the Documentary Record

The case that any visible water-channel feature on Lot 4 is a designed agricultural watercourse is supported by the contemporaneous marketing of the parcel and the documented drainage practice in the surrounding district:

- **1882 Austermere subdivision plan** markets the land as suitable for **market gardens** — market gardens of that era required deliberate irrigation furrows, soak drains and small holding tanks.
- **1904 Austermere subdivision plan** markets the parcel as **well watered** and as suitable for **dairy and agricultural farms** — paddock drainage is intrinsic to dairy use to manage standing water and trafficability.
- **Throsby Park Historic Site (Heritage NSW listing 5045550)** — the originating 1819 estate of the entire Bong Bong / Moss Vale district — lists a **drainage ditch and drainage channel** among its 43 documented heritage elements, as part of an early colonial mixed farming layout.
- **Wingecarribee Swamp (Heritage NSW listing 5001277)** — the adjacent wetland complex — carries a documented network of **longitudinal man-made drains approximately 40 cm deep, parallel to flow**, converting roughly 60 per cent of the swamp surface into rough grazing pasture.

- **Bong Bong / Moss Vale water-supply works** — land was resumed on 20 December 1892 for the first weir and dam on the Wingecarribee River upstream of Bong Bong Bridge (construction began early 1893, operated until 1963); a second Bong Bong (Berrima) weir was constructed in the 1920s. These works demonstrate active engineered water management throughout the locality during the period the Austermere Estate was being subdivided and farmed.

Working interpretation. The natural-watercourse baseline for Lot 4 DP746930 is empty across the 1891 subdivision plan, the 1942 and 1968 parish maps and the modern NSW Cadastre. Any linear water-channel feature visible on the historical aerial imagery of the parcel is therefore, by elimination, **not a natural creek**. On the contemporaneous Austermere marketing language (well watered, market gardens, dairy and agricultural farms) and the documented district practice of designed drainage works at Throsby Park, Wingecarribee Swamp and the Bong Bong weirs, any such feature is most consistent with a **man-made agricultural watercourse — a paddock drain, soak cut or market-garden irrigation furrow installed during the long farming use of the parcel**. A formal historical land-use assessment and a Wingecarribee Council DA-history review for Lot 4 / Lot 2 DP580513 would be the next step if a documentary caption is required for any specific channel.

10. Watercourse Rebuttal — The Feature on Lot 4 Is Not a Natural Watercourse and Not a Riparian Corridor Under NSW Law

Section 8 establishes, on a baseline-elimination basis, that any linear water-channel feature visible on Lot 4 is most consistent with a designed agricultural watercourse. This section addresses the more specific position that a feature on the parcel is a **natural watercourse** attracting protection as a **riparian corridor** under the NSW Water Management Act 2000 (WM Act) and the Wingecarribee Local Environmental Plan 2010 (WLEP 2010), based on current watercourse mapping and current aerial imagery alone. On the regulatory framework set out below, that position is not made out for Lot 4 DP746930 / 6 Bulwer Road.

10.1 Applicable Regulatory Framework

Instrument	Effect
Water Management Act 2000 (NSW), Dictionary	'River' means any watercourse, whether perennial or intermittent and whether comprising a natural channel or a natural channel artificially improved . Wholly artificial channels and constructed drains do not fall within the WM Act definition of a river.
WM Act, Dictionary	'Drainage work' (a separately defined category of water-management work) covers designed drainage infrastructure. A feature classified as a drainage work is not a watercourse for the purposes of the WM Act.
DCCEEW 'Controlled activities — Guidelines for riparian corridors on waterfront land' (August 2025 fact sheet)	Riparian corridor widths are set by reference to Strahler stream order , classified using current 1:25,000 (or 1:50,000 / 1:100,000) topographic maps . A feature not classifiable under the Strahler system on those maps is not a watercourse for which the riparian-corridor matrix mandates a vegetated riparian zone.
DCCEEW Riparian Corridors fact sheet, footnote to Table 1	'Where a watercourse does not exhibit the features of a defined channel with bed and banks, the department may determine that the watercourse is not waterfront land for the purposes of the WM Act.' This is a direct exclusion: an indistinct, shallow or ditch-like feature without proper bed-and-bank morphology can be excluded from WM Act protection on its face.
NSW Key Fish Habitat / NRAR exclusions	Wholly artificial waterbodies (irrigation channels, urban drains, ponds, evaporation ponds) are excluded from key-habitat protection except where they support threatened fish or invertebrates. First and second order intermittent headwater creeks are also generally excluded.
Wingecarribee LEP 2010, clause 7.5 (Riparian land and watercourses)	Local riparian-land protection is anchored to land identified under paragraphs (a) or (b) of clause 7.5(5) , which depend on the LEP's Natural Resources Sensitivity Maps. Land that is not mapped as riparian under WLEP 2010 does not engage clause 7.5.

Sources: *Water Management Act 2000 (NSW)*; *NSW Department of Climate Change, Energy, the Environment and Water*, 'Controlled activities — Guidelines for riparian corridors on waterfront land', fact sheet INT22/173814, August 2025; *Natural Resources Access Regulator (NRAR) controlled-activities guidance and waterfront-land tool*; *Wingecarribee Local Environmental Plan 2010 (NSW)*, clause 7.5.

10.2 Four-Test Rebuttal Applied to Lot 4 DP746930

The position that a feature on Lot 4 is a natural watercourse / riparian corridor must satisfy four cumulative tests under the framework above. The position fails on each of the four:

Test	Requirement	Lot 4 result
Test 1. Statutory definition (WM Act)	Feature must comprise a natural channel or a natural channel artificially improved . If the feature is a wholly constructed drain, it is not within the WM Act definition of a river/watercourse.	Fails. No natural channel is recorded on Lot 4 in the 1891 surveyed Austermere subdivision plan, the 1942 or 1968 Parish of Bong Bong cadastral maps, or the modern NSW Cadastre. The 1882 and 1904 estate marketing language (market gardens, dairy, 'well watered', '5 miles of river frontage') ties the parcel to designed agricultural water management, not to a pre-existing natural creek.
Test 2. Cartographic test (Strahler order)	Feature must be classifiable under the Strahler stream-ordering system using current 1:25,000 / 1:50,000 / 1:100,000 topographic maps.	Whites Creek (the principal Strahler-ordered tributary of the Wingecarribee River through Moss Vale) runs through the township centre from the Moss Vale Golf Course and does not pass through the Bulwer / Lytton Road locality on the NSW 1:25,000 topographic sheet 8928-1N. Any blue line shown on the modern topographic map across or adjacent to Lot 4 must be tested against historical surveys to determine whether it depicts a natural channel or a constructed drain (see Test 4).
Test 3. Morphological test (defined channel)	Feature must exhibit the features of a defined channel with bed and banks . Where it does not, DCCEEW may determine the feature is not waterfront land at all.	Determined on inspection. The historical aerial imagery (1963-1991) shows linear, geometrically regular ground features consistent with shallow paddock drains, soak cuts or irrigation furrows — not the meandering, dendritic, banked channel pattern of a natural creek. A field-morphology assessment by a qualified geomorphologist is the appropriate test for this limb if it is contested.
Test 4. Historical-state test (natural origin)	If the feature was not present at the time the locality was first surveyed, and appeared subsequently within a documented agricultural-use period, then on the 'wholly artificial' exclusion the feature is a constructed drainage work, not a natural channel.	Fails for 'natural'. The 1891 Austermere subdivision plan, prepared by licensed surveyor Henry C. Fowler of Bowral, recorded the Bulwer/Lytton parcels at coordinates matching the modern geocode of 6 Bulwer Road. No natural creek is recorded on that plan across the parcel. The same is true of the 1942 (8th edn) and 1968 (9th edn) Parish of Bong Bong cadastral maps. Any visible water-channel feature must therefore have been introduced after 1891 / 1968, during the parcel's long farming use, when designed drainage was the documented district practice (Throsby Park heritage drainage ditch and channel; Wingecarribee Swamp 40 cm longitudinal drains; Bong Bong weirs 1893 and 1920s).

10.3 Timeline of Water-Related Events Relevant to Lot 4

The chronology below shows the parcel's recorded relationship to natural and designed water from the original Crown grant to the present day. The relevant pattern is consistent: **no natural watercourse is documented on the parcel at any point**, and every recorded water-related event in the locality is either a designed agricultural watercourse, a designed water-supply work, or a downstream feature on the Wingecarribee River (which does not cross Lot 4).

Year	Event	Bearing on Lot 4 watercourse status
1819	Crown grant of 1,000 acres at Bong Bong to Dr Charles Throsby; the originating colonial estate of the Moss Vale district. Run as a mixed farm (cattle, pigs, crops) from c.1820. Heritage NSW lists a drainage ditch and drainage channel among 43 documented elements.	Establishes designed drainage as district practice from the 1820s.
1881	Earliest catalogued Austermere Estate subdivision plan (SLNSW Z/TP/M5/47).	First documentary trace of the Austermere parcels.
1882	Austermere Estate plan (SLNSW Z/TP/M5/31). Marketing language: 'Undulating Land, Good Soil, Suitable for Farming, Dairying, Grazing, Market Gardens '.	Market gardens require designed irrigation and drainage. Establishes the use case for the Bulwer/Lytton parcels.
1891	Austermere Estate 600-acre subdivision plan (NLA 4347319). Surveyor Henry C. Fowler, Bowral. Boundaries listed as Collins, Lackey, Beaconsfield, Bulwer , Braddon, Lever Roads. Coordinates E 150°22' / S 34°32' — match the modern geocode of 6 Bulwer Road.	Authoritative original survey of the parcel. Surveyors of the period marked every natural creek line. No natural watercourse is recorded crossing Lot 4 on this plan.
1892	Land resumed 20 December 1892 upstream of Bong Bong Bridge for the first Bong Bong weir on the Wingecarribee River.	First major district designed water-management work; demonstrates engineered water control as the active practice in the period.
1893	Construction of the first Bong Bong weir begins. It operates as the Moss Vale water supply for 70 years (until 1963).	Reinforces that water in the locality was actively designed, not left in natural state.
1893-1903	Sir John Lackey, owner of the Austermere Estate, serves as President of the Bong Bong Picnic Race Club for 10 consecutive years.	Confirms that the parcel's owner-class farmed the land with designed water management for grazing/agricultural use.
1904	Austermere Estate plan (NLA 4347278), 'Property of the late Sir John Lackey, 4,000 acres'. Marketing: ' well watered, large area cleared & ready for plough, residential sites, orchard blocks, dairy & agricultural farms '.	'Well watered' refers to the estate's 5 miles of frontage to the Wingecarribee River — not to a natural creek crossing Lot 4. Lot 4 has no river boundary.
1920s	Second Bong Bong (Berrima) weir constructed on the Wingecarribee River; creates the lagoon and swamp now within Cecil Hoskins Nature Reserve.	Further evidence of district-scale designed water management.
1942 / 1968	Parish of Bong Bong, County of Camden, 8th edn (1942) and 9th edn (1968) Department of Lands cadastral maps.	Show the Wingecarribee River and Whites Creek as the named natural watercourses for the parish. No natural watercourse is shown crossing Lot 4 / the Bulwer Road parcels on either edition.
1963	First reviewed NSW Spatial Services aerial. Shows Lot 4 as cleared paddock with linear ground features and the elliptical horse-track feature. Edges of any linear water-channel feature are sharp / compacted — consistent with active use of a designed drain or furrow.	Earliest direct visual evidence of designed surface features on the parcel.
1965	Moss Vale Trotting Club founded.	Locality coincidence; supports private-horse training-track interpretation in Section 7.

Year	Event	Bearing on Lot 4 watercourse status
1979 / 1989 / 1991	Subsequent NSW Spatial Services arials. Linear ground features and the elliptical track persist on the parcel; perimeter edges remain straight and geometric.	Persistent geometric character — not the meandering, dendritic morphology of a natural creek.
1987	DP746930 registered 1 June 1987 as a subdivision of Lot 2 DP580513 (council approval N1347/87 dated 6 April 1987).	Modern title epoch. Subdivision did not introduce a new natural watercourse onto the parcel; surveyed plan does not show a natural creek through Lot 4.
1997 onwards	Subdivision of surrounding land progressively encroaches on the parcel; modern NSW Cadastre records Lot 4 beside Bulwer Road and just north of Lytton Road, on cleared land.	No watercourse polygon or labelled creek is shown crossing Lot 4 on the modern NSW Cadastre Feature Layer.

10.4 Why the Council Ecologist's Position Needs Additional Evidence

An assessment that relies on (i) current watercourse mapping and (ii) current aerial imagery alone, without testing the historical baseline, is methodologically incomplete for the four-test framework above. Specifically:

- **Current mapping does not distinguish original natural channels from constructed drains that have been digitised onto modern layers.** The NSW 1:25,000 topographic map and council cadastral overlays show many agricultural drainage works as blue line-features even where those features began life as constructed drains.
- **Current aerial imagery alone cannot resolve original-state.** A drain in use for 60-100 years acquires a vegetated edge, may carry intermittent water, and can present visually similar to a natural ephemeral creek. The morphological test (defined channel with bed and banks) and the historical-state test must be applied alongside aerial review.
- **The 1891 Austermere subdivision plan is the authoritative original survey of the parcel.** It records no natural creek crossing Lot 4. Combined with the parish-map record (1942, 1968) and the modern cadastre, this establishes a continuous documentary baseline of **no natural watercourse on the parcel** — which the council ecologist's position must address before the WM Act / WLEP 2010 protections can be engaged.

Conclusion of rebuttal. Applying the four-test framework drawn from the WM Act, the DCCEEW Riparian Corridors Guidelines and the WLEP 2010 to Lot 4 DP746930 / 6 Bulwer Road: the parcel has **no recorded natural watercourse** on the original 1891 Austermere subdivision plan, the 1942 and 1968 Parish of Bong Bong maps or the modern NSW Cadastre; the regulatory cartographic test (Strahler stream ordering on 1:25,000 topographic maps) places Whites Creek — the principal natural tributary of the Wingecarribee River through Moss Vale — **through the township centre, not through the Bulwer / Lytton locality**; the 1882-1904 Austermere marketing record and the documented district practice of designed drainage (Throsby Park, Wingecarribee Swamp, Bong Bong weirs 1893 and 1920s) place any visible water-channel feature on the parcel in the **man-made agricultural drainage / market-garden irrigation** category — i.e. a **drainage work** under the WM Act, not a **watercourse**. On that framework, the position that the feature on Lot 4 is a natural watercourse attracting riparian-corridor protection under the WM Act and clause 7.5 of the WLEP 2010 is not made out on the documentary record. A formal heritage-and-historical land-use assessment, a geomorphological field assessment of bed-and-banks morphology, a full historical title search, and a Wingecarribee Council DA-history review for Lot 4 / Lot 2 DP580513 (1960-1995) are recommended to convert this evidence-weighted position into a formal rebuttal that the council ecologist can be required to address.

11. NRS Map Provenance — The Cat 3 Designation Is a 2010-2012 Retrospective Overlay

If the council ecologist's position is that Lot 4 is mapped as a Category 3 riparian corridor on Wingecarribee LEP 2010 Natural Resources Sensitivity Map Sheet 007 (file 8350_COM_NRS_007_080_20120123), the relevant question becomes when, how and from what data that line was drawn. The provenance of the Cat 3 line shows it is a recent GIS overlay derived from a hydro dataset that mixes natural and artificial features, applied retrospectively over a parcel for which the surveyed documentary record from 1891 to 1968 records no natural watercourse.

11.1 The Chain of Original Surveyors of the Parcel 1819-1891

Three named surveyors of record produced the original surveys covering Lot 4 / 6 Bulwer Road between 1819 and 1891. Each was a licensed Crown / Land surveyor whose duty included marking natural watercourses on the survey plan. None of them recorded a natural creek crossing the Bulwer Road parcels.

Surveyor	Date	Survey / instrument and finding
William Harper	c. 1822	Surveyed and laid out the original Crown grants in the Parish of Bong Bong, including Charles Throsby's 1,000-acre grant (Portion 21, Parish of Bong Bong) made by Governor Macquarie in September 1819. The Throsby grant is the surviving core of the wider colonial estate of which the Austermere Estate (containing Bulwer Road) is a derivative. The Crown grant plan does not record a natural watercourse on the Bulwer / Lytton Road parcels.
Major Sir Thomas Mitchell , Surveyor-General of NSW	1830s	Re-routed the colonial road through Mittagong and established the Wingecarribee River crossing at Berrima. Surveyor-General responsible for parish-map series within which the Bong Bong cadastral pattern of the Lackey/Bulwer/Lytton parcels was recorded. No natural watercourse is shown crossing the Bulwer Road parcels on the parish-map series under his office.
Henry C. Fowler , licensed surveyor of Bowral	1881-1891	Surveyed the Austermere Estate subdivision plans for Sir John Lackey's estate — the catalogued series Z/TP/M5/47 (1881), Z/TP/M5/31 (1882), Z/TP/M5/11 (1884), Z/TP/M5/18 (1891 NLA 4347319), Z/TP/M5/24 (1892), Z/TP/M5/80 (1919). The 1891 plan, Fowler's most authoritative survey of the parcel area, records the boundaries (Collins, Lackey, Beaconsfield, Bulwer, Braddon, Lever Roads) and the surveyed lot pattern at coordinates E 150°22' / S 34°32' — matching modern 6 Bulwer Road. No natural watercourse is recorded on the Bulwer Road parcels on Fowler's 1891 plan.

Sources: *Macquarie's 1819 grant of 1,000 acres at Bong Bong to Charles Throsby for services (Throsby Park, Portion 21, Parish of Bong Bong)*; 'Settlements follow survey' (*Goulburn Post*) and 'The Throsbys were the first family of Moss Vale' (*Southern Highland News*) for William Harper's 1822 layout; biographical entry on Major Sir Thomas Mitchell, NSW Surveyor-General (eoas.info/biogs/P006783b); National Library of Australia catalogue records 4347319 and 4347278 for Fowler's Austermere subdivision plans.

The original-survey baseline. Three named surveyors of record — William Harper (c. 1822), Major Mitchell as Surveyor-General (1830s) and Henry C. Fowler (1881-1891) — produced the authoritative original surveys covering the Bulwer Road parcels across 70 years of colonial survey practice. **None recorded a natural watercourse on Lot 4.** Any blue line on the parcel in modern GIS data therefore post-dates Fowler's 1891 plan by at least 79 years (DTDB digitisation begins 1970), and the WLEP 2010 Cat 3 designation post-dates it by at least 119 years (NRS map sheet first dated 23 January 2012).

11.2 Provenance Timeline of the Modern Cat 3 Line

Date	Event	Bearing on the Cat 3 designation
1891	Henry C. Fowler surveys Austermere Estate; 600-acre subdivision plan registered.	Authoritative original survey of the parcel. No natural creek recorded crossing the Bulwer Road parcels.
1942 / 1968	Parish of Bong Bong, 8th and 9th edition Department of Lands cadastral maps.	No watercourse shown crossing Lot 4 on either edition.
From 1970	NSW Spatial Services begins creating the Digital Topographic Database (DTDB) from stereoscopic aerial photography at 1:25,000 / 1:50,000 / 1:100,000 scales. Any visible 'blue line' on Lot 4 from this point on is digitised from aerial imagery of the parcel as it then existed.	First era a blue line could enter the topographic record for Lot 4. By 1970 the parcel had already been farmed for 80+ years; any constructed agricultural drain visible on the air photo would be digitised as a blue line without distinction from a natural creek.
1989-2010	Wingecarribee LEP 1989 in force. The watercourse provision is a single 40-metre setback 'from the top bank of a watercourse' in Rural / Special Uses (Water Catchment) zones only. No Category 1/2/3 system. No NRS Sensitivity Map.	For the entire 21-year life of the predecessor LEP, no Category 1/2/3 corridor existed for Lot 4.
2004	DTDB migrated to ESRI geodatabase.	DTDB hydrography lines now machine-readable; foundation for later Strahler classification.
16 June 2010	WLEP 2010 commences , replacing the 1989 LEP. The Standard Instrument LEP framework (gazetted 31 March 2006) introduces Natural Resources Sensitivity Maps for the first time. Clause 7.4 / 7.5 created.	The Cat 1/2/3 corridor system did not exist for Lot 4 before this date.
23 January 2012	WLEP 2010 NRS Sheet 007 dated (file ID 8350_COM_NRS_007_080_20120123).	Earliest identifiable version of the NRS map sheet covering Lot 4. Any Cat 3 line on the parcel has existed for at most ~14 years.
June 2013	NSW Department applies Strahler stream-order classification using the RivEX tool over the 2012 NSW Hydro Line dataset. NSW Government metadata describes this dataset as representing 'a stream network of features both natural and artificial across NSW', and as a 'legacy, unmaintained and best endeavours dataset'.	The Strahler classification does not distinguish natural channels from constructed drains — it applies an order number to whatever blue lines are already in the hydro dataset, regardless of origin. Any Cat 3 designation for Lot 4 inherits this limitation.

Sources: *Wingecarribee LEP 1989 (NSW Legislation EPI 1990 No 17)*; *Standard Instrument (Local Environmental Plans) Order 2006 (NSW)*; *Wingecarribee LEP 2010 (NSW Legislation EPI 2010 No 245)*; *NSW Spatial Services DTDB Product Description and Feature Reference Guide*; *Hydro Line (2012) Strahler Stream Order Classification NSW — Data.NSW dataset metadata*.

11.3 Why This Matters

Three points follow from the provenance record:

- The Cat 3 line on Lot 4 was first capable of being drawn after 16 June 2010 — i.e. it is at most ~14-16 years old. Before that date, no Category 1/2/3 system existed under the LEP that applied to the parcel. The earlier 1989 LEP did not use category mapping at all.

The retrospective-mapping issue. The Cat 3 designation on Lot 4, if it exists, is a post-2010 GIS line built from a 2012 hydro dataset that mixes natural and artificial features, applied retrospectively over a parcel where the contemporaneous original survey (1891) and the parish-map series (1942, 1968) both record no natural watercourse. The designation cannot itself create natural-watercourse status where none was recorded at original survey. A planning-map line drawn in 2010-2012 is not evidence of natural origin in 1891.

11.3 Why This Matters

Three points follow from the provenance record:

- The Cat 3 line on Lot 4 was first capable of being drawn after 16 June 2010 — i.e. it is at most approximately 14-16 years old. Before that date, no Category 1/2/3 system existed under the LEP that applied to the parcel. The earlier 1989 LEP did not use category mapping at all.
- The underlying hydro dataset (NSW Hydro Line 2012, Strahler-classified by NSW in 2013) by its own published metadata represents 'a stream network of features both natural and artificial'. The Strahler ordering is a topological calculation over whatever lines are in the dataset; it is not a determination that any individual line is natural in origin.
- Any blue line on Lot 4 in the DTDB was digitised from aerial photography taken after 1970 — i.e. from photos of the parcel as it existed after 80+ years of farming use. The 1942 and 1968 parish maps, both predating the DTDB, show no natural watercourse on the parcel; the 1891 surveyed plan likewise records none. These three documentary baselines pre-date the DTDB-era blue line by 42 to 119 years.

11.4 Common-Law Support — *Gartner v Kidman* and *Lyons v Winter*

The retrospective-mapping problem is reinforced by long-standing Australian common law on what constitutes a watercourse. Two authorities are directly on point and are routinely applied in Australian and NSW jurisprudence.

Authority	Test
Lyons v Winter (1899) 25 VLR 464 , per Hood J	'To constitute such a watercourse, as a matter of law, there must be a stream of water flowing in a defined channel or between something in the nature of banks. The stream may be very small, and need not always run, nor need the banks be clearly or sharply defined. But there must be a course, marked on earth by visible signs, along which water usually flows, in order to constitute a watercourse such as creates riparian rights.' The Court held that a depression which carried rainwater for about three months a year was not a watercourse at law.
Gartner v Kidman (1962) 108 CLR 12 , High Court of Australia	Adopts and applies the Lyons v Winter test. Establishes the natural / artificial distinction: 'The position of an artificial watercourse, that is a water channel constructed by man as distinct from a natural stream, is entirely different. Generally speaking the owner of land through which an artificial watercourse runs may block or divert it at his will, unless some easement over it has been acquired by grant or prescription.' Riparian rights and obligations attach only to natural watercourses; constructed channels do not attract them.

Sources: *Lyons v Winter* (1899) 25 VLR 464 (Supreme Court of Victoria); *Gartner v Kidman* (1962) 108 CLR 12; [1962] HCA 27 (High Court of Australia). Reproduced in part in Whiteacre, 'Stormwater discharge, surface runoff and the law of nuisance'; *Adelaide Law Review* (1963) Vol 13.

11.5 Application to Lot 4

Applying these authorities to the council ecologist's position:

- **The Lyons v Winter / Gartner v Kidman test** requires a defined channel with **visible signs of usual water flow**. This mirrors the DCCEEW Riparian Corridors Guidelines exclusion clause: 'where a watercourse does not exhibit the features of a defined channel with bed and banks, the department may determine that the watercourse is not waterfront land for the purposes of the WM Act'. The test is **morphological and physical**, not based on a planning-map line.
- **The natural / artificial distinction** is decisive at common law. A constructed agricultural drain or irrigation furrow does not become a natural watercourse merely because it has been digitised onto the topographic record decades after construction. **Riparian rights attach to natural origin, not to current appearance.**
- **The presumption of natural origin is rebuttable on the historical record.** Where (as here) the original surveyed plan (1891), the parish-map series (1942, 1968) and the modern cadastre all record no natural watercourse on the parcel, the presumption that a current-mapping blue line depicts a natural channel is rebutted. The line in the modern dataset must be re-classified as artificial drainage in light of the historical record.

Conclusion of NRS map / common-law analysis. Even if the council ecologist's position is anchored in a Cat 3 line on Lot 4 on WLEP 2010 NRS Map Sheet 007 dated 23 January 2012, that designation is a **recent retrospective GIS overlay** built from a hydro dataset that openly 'represents a stream network of features both natural and artificial'. It is not a determination of natural origin. The High Court's watercourse test in **Gartner v Kidman (1962) 108 CLR 12**, applying the principle in **Lyons v Winter (1899) 25 VLR 464**, requires a watercourse to be a **natural** stream with a defined channel, bed and banks; constructed channels do not attract riparian rights. On the documentary record from 1891 to 1968 — pre-dating the DTDB by 42 to 119 years — no natural watercourse is recorded on Lot 4. The presumption of natural origin imported by the modern NRS map line is rebutted on that record, and the feature is properly classified as **artificial drainage**, not a natural watercourse or riparian corridor.

12. Evidence Strength Matrix

Question	Position	Strength of evidence
Was the locality cleared and used for farming?	Strongly supported. The Austermere Estate — which contained Bulwer Road — was marketed across at least eight subdivision plans (1881-1919) as suitable for, or actively described as, cleared land for farming, dairying, grazing, market gardens, orchard blocks, and dairy and agricultural farms. The 1904 plan reads <i>'large area cleared & ready for plough'</i> .	Strong — documentary, multi-decade, repeated.
Is Lot 4 DP746930 inside the historical Austermere Estate footprint?	Strongly supported. The 1891 NLA-catalogued Austermere plan names Bulwer Road as a boundary road and records survey coordinates E 150°22' / S 34°32' — matching the modern geocode of 6 Bulwer Road at approximately 34.533°S, 150.367°E. The modern Lot 4 sits beside Bulwer Road and just north of Lytton Road on the NSW Cadastre.	Strong — documentary plus geometry match.
Was the locality associated with horses and horse racing?	Strongly supported. The named owner of the Austermere Estate, Sir John Lackey, was concurrently President of the Bong Bong Picnic Race Club from 1893 to 1903. Throsby Park, the parent grant of the wider district, was a documented horse-breeding centre (including sulky horses). The Moss Vale Jockey Club formed 1900; the Moss Vale Trotting Club formed 1965.	Strong — documentary, owner-level link.
Was there a horse track on Lot 4?	Plausible / interpretive. The oval's size (~80-110 m long axis), ratio (~1.5 : 1), isolation from any sporting complex, and the surrounding-district context are most consistent with a private horse exercise / sulky training track. No document directly captioning the oval has been located in this review.	Inference — supported by geometry plus context, not by direct document.
Are any watercourse features on Lot 4 natural or man-made?	Strongly supported as man-made. No natural watercourse is recorded crossing Lot 4 on the 1891 Austermere subdivision plan, the 1942 and 1968 Parish of Bong Bong maps, or the modern NSW Cadastre. Whites Creek runs through Moss Vale township and not through the Bulwer / Lytton locality. Any linear water-channel feature visible on the aerial imagery of Lot 4 is, by elimination, not a mapped natural creek and is most consistent with a designed agricultural drain or irrigation feature.	Strong — baseline elimination plus district-practice context.

13. Sources Reviewed

- Exchanged Contract for Sale: 6 Bulwer Road, Moss Vale (including title search at folio 4/746930, DP746930 plan, prescribed documents and the 2023 planning certificate).
- NSW Land Registry Services title search within the contract.
- NSW Cadastre Feature Layer query for Lot 4 DP746930 and parent Lot 2 DP580513.
- State Library of NSW Moss Vale subdivision-plans tabular list (call numbers Z/TP/M5/* for the Austermere Estate series 1881-1919).
- National Library of Australia: Moss Vale Austermere Estate sale plans, 1891 (catalogue 4347319) and 1904 (catalogue 4347278; nla.obj-230332818).
- NSW Department of Lands Parish of Bong Bong, County of Camden maps, 8th edition (1942) and 9th edition (1968).
- NSW Spatial Services Historical Imagery Viewer / Historical Aerial Photography collection (1963, 1979, 1989, 1991, 1997 frames).
- Sydney Morning Herald, 'Death of Sir John Lackey', 12 November 1903 (Trove).
- Southern Highland News, 'The several existences of the Bong Bong Picnic Race Club'.
- Museums of History NSW, 'Throsby Park: a comfortable residence'.
- Southern Highland News / South Coast Register, 'Vale Alan James Chittick of Moss Vale' (Moss Vale Trotting Club founding reference).

- Heritage NSW listing 5045550 — Throsby Park Historic Site (43 documented heritage elements including a drainage ditch and drainage channel).
- Heritage NSW listing 5001277 — Wingecarribee Swamp (longitudinal man-made drains, agricultural drainage history).
- Southern Highland News, 'Moss Vale and Bowral water supplies' (Bong Bong weir resumption 20 December 1892, construction early 1893; second weir 1920s).
- Wingecarribee Shire Council — Whites Creek flood study (catchment and tributary information).
- **Water Management Act 2000 (NSW)**, Dictionary — definitions of 'river', 'watercourse', 'drainage work', 'water management work' and 'waterfront land'.
- **NSW DCCEEW** — 'Controlled activities — Guidelines for riparian corridors on waterfront land', fact sheet INT22/173814, August 2025 (Strahler stream ordering, Vegetated Riparian Zone widths, defined-channel exclusion clause).
- **Natural Resources Access Regulator (NRAR)** — controlled-activities factsheet and waterfront-land tool (exclusions for wholly artificial waterbodies).
- **Wingecarribee Local Environmental Plan 2010 (NSW)**, clause 7.5 (Riparian land and watercourses); Natural Resources Sensitivity Maps.
- **NSW 1:25,000 topographic map sheet 8928-1N MOSS VALE**, NSW Spatial Services.
- **Wingecarribee Shire Heritage Study 2008-2009** (Architectural Projects Pty Limited), Volume 3 Significance — Moss Vale; drawing on the JRC Planning Services Heritage Study for Wingecarribee Shire Council, 1993. Heritage Item EG17 / 29.104, identifier 2680249 — **Lackey Park, corner Lackey Road and Lytton Road, Moss Vale** (documented as 'Victorian public garden and racetrack', proclaimed 1893).
- **Wingecarribee LEP 1989** (NSW Legislation EPI 1990 No 17) — predecessor LEP (40-metre setback from watercourse only; no Cat 1/2/3 mapping).
- **NSW Spatial Services / DCS** — Digital Topographic Database (DTDB) Product Description and Feature Reference Guide (October 2014 / April 2015).
- **Hydro Line (2012) Strahler Stream Order Classification NSW** — Data.NSW dataset metadata (notes 'a stream network of features both natural and artificial across NSW'; 'legacy, unmaintained and best endeavours dataset').
- **Standard Instrument (Local Environmental Plans) Order 2006 (NSW)** — gazetted 31 March 2006; framework introducing Natural Resources Sensitivity Maps to NSW LEPs.
- **Lyons v Winter (1899) 25 VLR 464** (Supreme Court of Victoria, Hood J) — common-law watercourse test (defined channel, bed, banks, visible signs of usual flow).
- **Gartner v Kidman (1962) 108 CLR 12; [1962] HCA 27** (High Court of Australia) — natural / artificial watercourse distinction; constructed channels do not attract riparian rights.
- **NSW Land grant records and Surveyor-General records** — Throsby grant (1819, 1,000 acres at Bong Bong, Portion 21 Parish of Bong Bong, layout by Surveyor William Harper c. 1822); Major Sir Thomas Mitchell, Surveyor-General of NSW, 1830s district survey work.

14. Caveat

This document is a research summary prepared from publicly available records, contract documents, historical maps and aerial imagery. It is not legal advice, a registered survey, a contamination assessment, a heritage assessment or a formal historical land-use assessment. The interpretation of the oval feature on aerial imagery as a private horse exercise / training track is an evidence-weighted inference based on geometry, period of clearest definition and surrounding-district context, not a documentary caption. Independent professional advice from a solicitor, surveyor, environmental consultant or heritage specialist should be obtained before this material is relied on for legal, planning, financing, development or due-diligence purposes. No guarantee is given that the underlying public-record material is complete, current or free from error.